

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOILENE GROVE,

Petitioner

VS.

DAVID C GROVE JR,

Respondent

) Case Number: FDI-20-793172

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner, Joilene Grove (Wife) and Respondent, David Grove Jr. (Husband).

There are no minor children subject to this proceeding.

2) Judgement of Dissolution was entered on 09/09/20.

3) On 03/16/26, Wife filed a Request for Order seeking \$200,000 in attorney's fees and costs pursuant to Family Code section 2030.

4) On 03/16/26, counsel for Wife filed a declaration substantiating her attorney's fees and costs request.

5) On 03/17/26, Wife filed an Income and Expense Declaration, indicating that she earns \$18,333 in gross monthly income and pays \$32,486 in total monthly expenses.

6) On 03/16/26, Wife filed a Proof of Service Declaration indicating that Husband was served with Wife's Income and Expense Declaration by electronic service on 03/17/26, which is timely service. Wife did not indicate service of her 03/16/26 Request for Order.

- 7) On 06/03/26, Wife filed an amended Request for Order seeking \$302,576 in attorney's fees and costs pursuant to Family Code section 2030.
- 8) On 06/03/26, counsel for Wife filed an amended declaration substantiating her attorney's fees and costs request.
- 9) On 06/03/26, Wife filed an updated Income and Expense Declaration, indicating that she earns \$19,166 in gross monthly income and pays \$31,486 in total monthly expenses.
- 10) Wife did not file a Proof of Service Declaration indicating that she served Husband with her amended Request for Order or her updated Income and Expense Declaration.
- 11) Husband has not filed a Responsive Declaration.
- 12) Husband has not filed an updated Income and Expense Declaration.

B. Findings and Order

- 1) The Court finds that Wife's 03/16/26 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) As such, this matter is **continued to 08/19/26 at 9 AM in Department 403.**
- 3) At least 16 Court days prior to the next hearing date, Wife shall serve on Husband the (a) 03/16/26 Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure,
- 4) At least 9 Court days prior to the next hearing date, Husband may file a Responsive Declaration.
- 5) At least 5 Court days prior to the next hearing date, Wife may file and serve a Reply Declaration.
- 6) The Court will prepare the Findings and Order After Hearing.